

1/6

□

File No.: EXP202400096

RESOLUTION FOR FILING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On December 13, 2023, a complaint was filed with the Spanish Agency for Data Protection.

The reasons for the complaint are as follows:

The complainant states that they are a victim of sextortion using a video from an Instagram video call (A.A.A.) recorded without their consent. They assert that, although the account that published the video was blocked on the Instagram social network, it is accessible, linked to their surname, on the pornographic website eporner.com.

Relevant documentation provided by the complainant:

- Screenshot of a conversation held via Instagram with the user A.A.A. (**USER.1) where it is stated that this user says they will publish the naked video and sends a link to **URL.1.
- Screenshot of the sexual video published by the user **USER.2 on that user's profile on the eporner platform, whose profile URL is **URL.2.

SECOND: On January 3, 2024, in accordance with Article 65 of the LOPDGDD, the complaint was accepted for processing.

THIRD: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

On January 3, 2024, the following evidence was obtained,

1. Screenshot of the Instagram profile **USER.1 where it is noted that the account is private.
2. Screenshot of the eporner platform where the published video is noted.
3. Reported video.

On January 4, 2024, it was verified that:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/6

1. At the URL **URL.1, a sexual video is published.

On January 4, 2024, an email was sent to the address **EMAIL.1 requesting the removal of the content indicated at URL **URL.1.

On January 8, 2024, it was verified that the video from URLs **URL.1 and **URL.3 has been removed.

On January 8, 2024, the removal of the content was communicated to the complainant.

On February 6, 2024, the postal address of the registrant of the domain EPORNER.COM was verified, which is located in the USA and the registrar is KEY-SYSTEMS.

On February 6, 2024, a request for information was sent to EPORNER. The notification was made via international certified mail. The delivery was completed on March 28, 2024. No response has been received.

On January 8, 2024, collaboration was requested from the German authority through IMI A61VMN 592511 to obtain information from the registrar KEY-SYSTEMS regarding the identity of the owner of the domain EPORNER.COM. The German authority responded on April 17, 2024, with the information obtained from the registrar, stating that the owner of the domain EPORNER.COM is B.B.B., located in Poland.

As a result of the request for information made by the inspection, on February 29, 2024, META

PLATFORMS IRELAND LIMITED sent the following information and statements to this agency:

1. That the INSTAGRAM profile ***USER.1 is located outside the European region and not in Spain or any other place in the European region.

On April 18, 2024, collaboration was requested from the Polish authority through IMI A61VMN 629781 to obtain information from the owner of the domain EPORNER.COM regarding the IP addresses responsible for the publication. The Polish authority responded on July 12, 2024, via email with information about a contact email address for EPORNER (eporner@eporner.com), which was obtained from an anonymous letter sent to the Polish authority in response to another letter sent by the same Polish authority to the contact postal address of the owner of the domain EPORNER.COM.

On July 12, 2024, a request was sent to the provided email address, asking for information about the IP addresses responsible for the publication.

On July 12, 2024, a response was received to the previous email with information about the IP address responsible for uploading the reported video to the EPORNER.COM platform, with the following information:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/6

Video URL: ***URL.1

Upload date: 2023-12-13 (...) GMT+0200

Upload IP address: ***IP.1

On July 15, 2024, it is verified in service

<https://whois.domaintools.com/> that the specified IP address is assigned to ORANGE in Côte d'Ivoire.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legitimacy for processing

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction."

The processing of images that identify or make identifiable a person constitutes processing of personal data and, therefore, the person carrying it out must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR. In these cases, as in the case subject to complaint, the usual legitimizing ground is generally consent. It is the person who uploads the personal data and the images that can be viewed without any limitation who must demonstrate that they have that consent.

In order for such processing to be carried out lawfully, the provisions of Article 6.1 of the GDPR must be fulfilled, which states:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first subparagraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

III

Conditions for consent

Regarding the conditions for consent, Article 7 of the GDPR provides:

"1. When the processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.

2. If the consent of the data subject is given in the context of a written declaration which also relates to other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from the other matters, in an intelligible and easily accessible form and using clear and plain language. No part of the declaration which constitutes an infringement of this Regulation shall be binding.

3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed thereof. It shall be as easy to withdraw consent as to give it.

4. When assessing whether consent has been freely given, account shall be taken, to the greatest extent possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing."

processing of personal data that is not necessary for the execution of said contract."

IV

Conclusion

In order to identify the person or persons who were processing the data of the complainant included in a video, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

“1. Before the adoption of the agreement to initiate the procedure, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary

investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.

The Spanish Agency for Data Protection will act in any case when it is necessary to investigate processing that involves massive traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of twelve months from the date of the admission agreement or from the date of the agreement by which its initiation is decided when the Spanish Agency for Data Protection acts on its own initiative or as a result of the communication that has been sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

After conducting the investigations mentioned in the Facts, the following has been concluded:

The removal of the reported content has been achieved.

The IP address of the person responsible for uploading the content to the platform EPORNER.COM is located in Ivory Coast.

Information was obtained via email from the platform youjizz.com regarding the IP address associated with the creation of the user who published the content. This IP is located, according to the whois record, in Ivory Coast.

META responded that the reported profile is located outside the European region.

The person responsible for the publication could not be identified.

Thus, as it has not been possible to attribute responsibility for the processing in the publication of the images contained in the video, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/6

FIRST: TO PROCEED TO THE FILING of the present actions.

SECOND: TO NOTIFY this resolution to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es